

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2025

BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SRCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

Sirmex Oil and Gas Company represented by and thru its Chairman)
Mr. Musa Hassan Biliy, and Chief Executive Officer, Madam Wadei H.)
Powell of the City of Monrovia, Montserrado County, Republic of)
Liberia.....Informant)

Versus

) BILL OF
) INFORMATION

His Honor George W. Smith, Assigned Circuit Judge, Civil Law Court,)
Sixth Judicial Circuit, Montserrado County, Republic of Liberia)
.....1st Respondent)

And

Ecofuel Trading rue de 1'Ecole-de-Chimie, 1205 Geneve, Switzerland)
.....2nd Respondent)

And

Srimex Ecofuel FZE, Inc., by and thru its authorized representative of)
the City of Monrovia, Montserrado County, Republic of Liberia)
.....3rd Respondent)

GROWING OUT OF THE CASE:

Ecofuel Trading rue de 1'Ecole-de-Chimie, 1205 Geneve, Switzerland)
.....1st Appellant)

And

Srimex Ecofuel FZE, Inc., by and thru its authorized representative of)
the City of Monrovia, Montserrado County, Republic of Liberia)
.....2nd Appellant)

And

Eagle Holdings Limited by and thru its authorized representative of the)
City of Monrovia, Liberia.....3rd Appellant)

And

) APPEAL

National Port Authority (NPA) by and thru its Managing Director;)
Liberia Petroleum Refining Company (LPRC), by and thru its Managing)
Director, all of the City of Monrovia, Liberia.....4th Appellants)

Versus

Sirmex Oil and Gas Company represented by and thru its Chairman)
Mr. Musa Hassan Bility, and Chief Executive Officer Madam Wadei H.)
Powell, of the City of Monrovia, Liberia.....Appellee)

HEARD: October 27, 2025

DECIDED: December 19, 2025

MR. JUSTICE YUSSIF D. KABA DELIVERED THE OPINION OF THE COURT

This case is before us from a bill of information filed by Sirmex Oil and Gas Company represented by and thru its Chairman Mr. Musa Hassan Biliy, and Chief Executive Officer, Madam Wadei H.Powell, Informants herein, alleging improper execution of this Court's mandate as provided in its September 5, 2022, Opinion.

We now quote the mandate of the Supreme Court via its September 5, 2022, Opinion:

"WHEREFORE AND IN VIEW OF THE FOREGOING, it is our considered opinion that the ruling of the trial judge, being sound in law, should not be disturbed. The appeal taken by the 1st, 2nd, and 3rd appellants is denied and dismissed and the final ruling of the trial court decreeing the cancellation of the substitution and novation agreement is affirmed, however with modifications. The trial court is mandated to resume jurisdiction over this case and appoint a reputable accredited local auditing firm to conduct a comprehensive financial audit to ascertain and determine the following:

- 1. The total cost of constructing the terminal, including the respective investments made by the appellee and the 1st appellant;*
- 2. The revenue collected by both the appellee and the appellants from the sale and storage of petroleum products during the period of their respective operation and management of the terminal. In the case of the appellants, this will be from the first day when the terminal started operation up to November 9, 2018, and in the case of the appellee, this will be from November 9, 2018, up to the date of the entry of this judgment;*
- 3. The revenue referred to in item 2 above will first be applied against the respective investments made by the appellee and the 1st appellant toward the construction cost of the terminal. After these payments, any remaining amount will be shared equally by the 1st appellant and appellee on a 50-50 basis;*

4. *In the event the revenue referred to in items 2 & 3 (b & c, herein) above does not cover the 1st appellant's portion of the construction cost referred to in item 1 (a herein) above, the appellee shall be liable to pay the 1st appellant any outstanding or remaining balance.*

The Informant herein, Srimex Oil & Gas Company, Inc., has alleged in its bill of information that the 1st Respondent herein, Sixth Judicial Circuit, Civil Law Court presided over by His Honor Judge George W. Smith acted contrary to the mandate of this Honorable Court as handed down in its September 5, 2022, Opinion. Eco Fuel Trading rue de 1/Ecole-de-Chime, 1205 Geneve, Switzerland, 2nd Respondent herein has defended the action of the trial court and has argued that the bill of information should be denied as there is no violation or improper execution of the Supreme Court's Mandate by the 1st Respondent.

A review of the Supreme Court's opinion delivered on September 5, 2022, is clear that the trial court was mandated to appoint a reputable, accredited local auditing firm to conduct a comprehensive financial audit to ascertain and determine the points as listed supra. Based upon this mandate, Crowe Liberia LLC, a reputable auditing firm was commissioned by mutual consent of both parties as the auditor and upon execution of the engagement contract between the auditor and the parties, the lower court approved the said contract.

Crowe Liberia LLC then proceeded to conduct an audit and on May 7, 2025, submitted its final audit report to the parties and the court. The informant, upon receiving the said audit report, requested time to review and file any objections it may have had, to which said request was granted. The informant, upon revision of the said audit report filed a formal objection to the final audit report at the trial court arguing against the part of the report that found it (Informant) liable to the 2nd Respondent in the tone of Fourteen Million, Five Hundred and Twenty-Eight Thousand, Eight Hundred and Thirty-Eight United States Dollars (14,528,838.00).

The 2nd and 3rd Respondents filed their response to the informant's objections, defending the final audit report and prayed the lower court to deny the said objections, arguing that the Informant's objections sought to re-litigate the said matter. The lower court heard the objections and ruled denying the said objections.

Based upon this ruling of the lower court, the Informant filed this bill of information before this Court, contending that the auditor had conducted an audit well beyond the scope of the

Honorable Supreme Court's Mandate. The informant has argued that this Court's mandate was specific to ascertain the cost of constructing the terminal, that is, the mandate was for the capital costs of the construction asset and nothing in the directive of the Supreme Court's September 5, 2022 opinion authorized the inclusion of salaries, legal fees, insurance, or rent, administrative or post-construction costs. Informant has also argued that assuming without admitting that the Supreme Court's mandate provides for the consideration of the operation and administrative costs, the lower court was still in error by denying its objection. The informant has also strenuously argued that it was not provided with copies of the source documents from Credit Sussie that was used by the auditor to arrive at its findings and that this failure to provide the documents essentially denied Informant its legal and statutory right to examine the evidence adduced against it

The informant has now argued that the said action of the auditor's conduct by including in its audit. legal fees, salaries, administrative costs etc., is a substantial departure from the scope of this Court's mandate and that the said departure had a prejudicial and adverse impact on the Informant's pecuniary liability.

The Informant then prayed this Court to:

Order the 1st Respondent to properly enforce and implement this Honorable Supreme Court's mandate, to correct the improper enforcement by the 1st Respondent of this Court's, September 5, 2022, mandate;

Order the 1st Respondent to instruct the auditor to make available to the informant all documents the auditor obtained that were not supplied by the informant;

Order the 1st respondent to instruct the auditor to consider the discrepancies raised by the informant in informant's objection;

Instruct the 1st respondent to refrain from enforcing its ruling of June 17, 2025; and,

Grant unto the Informant any other relief which this Court deem just, legal and equitable.

The 2nd Respondent field its Response to the Informant's bill of information arguing firstly, that, the trial court did not violate this Court's mandate as this Court instructed the trial court to resume jurisdiction over the case and conduct a "comprehensive audit" , and that the

term comprehensive audit necessarily includes all reasonable and related expenses including administrative and operational costs, that is salaries, legal fees, insurance, which was necessary for the construction and operation of the said terminal; moreover, the respondent argued that the audit was conducted transparently, with multiple draft reports shared and discussed in the lower court at the conferences at which time no objections were raised by the Informant during the audit process. Hence, the informant's conduct to now challenge the said audit report is without merit and a mere delay scheme employed by the informant to deny 2nd Respondent its rightful and legal entitlement. 2nd Respondent further argued that assuming that the auditor committed any error in the conduct of the audit, the Informant suffered waiver and laches as it failed to object to earlier drafts, including the April 2025 Updated Draft Report which closely resembled the final version and that further delay unfairly prejudices it, as it has waited nearly four years for reimbursement.

After a careful review of the facts presented and a comprehensive review of the evidence before this Court, the issue that must be decided by this Court is:

Whether the trial court's acceptance of the Final Audit Report without affording the Informant access to the underlying source documents constitutes a deviation from this Court's mandate?

To answer this question, we take recourse to our laws.

Rule IV, Part 12 of the Revised Rules of the Supreme Court prescribes the office of bill information as follows:

"(a). A bill of information will lie to prevent a Judge or any Judicial Officer who attempts to execute the mandate of the Supreme Court in an improper manner from doing so with the Judgment and/or Mandate of the Supreme Court.

(b). A Bill of Information will also lie to prevent any one whomsoever from interfering with the Judgment and/or Mandate of the Supreme Court.

The Supreme Court has further interpreted this Rule in a long chain of Opinions that for a bill of information to be granted, the matter forming the basis of the information must have been pending before the Supreme Court or decided by it; that there must be an act tending to usurp the province of the Supreme Court; that there must exist some irregularities or

obstruction in the execution of the Supreme Court's mandate; or that there must have been a refusal to carry out the Supreme Court's mandate. *Ahmadu v. Sirleaf, III and Bartu Dorley, v. Yessim El-Bim, et al.*, Supreme Court Opinion, March Term 2013; *Liberia Aggregate Corporation v. Taylor et al.*, 35 LLR 3, 8 (1988). The Court has furthered held that only a bill of information can remove uncertainty from its judgment or correct the enforcement of its judgment. *J. Fonati Kofa and Members of the House of Representative of the 55th Legislature v. Representative Richard N. Koon, purported speaker of the house of Representative, Representative Thomas Fallah, Deputy Speaker of the House of Representative, et al.*, Supreme Court Opinion, March Term 2025.

From the above citations of law, it is clear that a bill of information will lie where there exists an obstruction in the execution of this Court's mandate, or where a subordinate court acts contrary to a directive issued it by this Court; moreover, this Court has furthered held that only a bill of information can remove uncertainty from its judgment or correct the enforcement of its judgment. *Intestate Estate of the late Sarah Sirleaf v. El-Bim et al.*, Supreme Court Opinion, March Term, 2013; *Liberia Aggregate Corporation v. Taylor et al.*, 35 LLR 38 (1988); *J. Fonati Kofa and Members of the House of Representative of the 55th Legislature v. Representative Richard N. Koon, purported speaker of the house of Representative, Representative Thomas Fallah, Deputy Speaker of the House of Representative, et al.*, Supreme Court Opinion, March Term 2025.

A review of the records shows that the trial court was mandated to appoint a credible auditing firm to conduct a comprehensive financial to:

1. *Identify the full cost of building the terminal.*
2. *Specify how much was invested by the Appellee and the 1st Appellant.*
3. *Calculate revenue earned from petroleum sales and storage:*
4. *Use the revenue to repay each party's construction investment.*
5. *Any surplus is to be split equally (50/50) between the Appellee and the 1st Appellant.*
6. *If the revenue is insufficient to cover the 1st Appellant's investment, the Appellee must pay the remaining balance.*

We note informant's argument that this Court in its mandate instructed that the audit was to specifically ascertain the cost of constructing the terminal, that is, the mandate was for the

capital costs of the construction asset and nothing more and that the trial court went beyond the mandate of this Court when it affirmed the audit report.

We agree with this contention of the Informant. As provided *supra*, the mandate specifically provided that the audit must specify how much was invested by both the Informant and 2nd Respondent in the construction of the terminal and that other aspects of the business including revenue earned from sales, etc., should be audited. This Court did not instruct the auditors to audit salaries or other expenses incurred by the Respondent outside of the construction costs of the terminal

Therefore, we hold that the auditor acted outside the scope of the Supreme Court's mandate when it audited other costs not associated with the construction of the terminal.

We also note that the nub of Informant's argument is that it was denied access to the source documents used by the auditor to arrive at its findings. The informant has argued that it needed access to the said source documents in order to properly ascertain its own liability or non-liability, this the informant has argued is a violation of the right to notice and due process.

We disagree with this argument of the Informant. It is evident from the records that the informant had the opportunity on several occasions to review the draft audit report and was a part of many conferences at the court subject to the findings of the audit report, however, Informant raised no objections whatsoever as to the findings of the said draft audit report nor did it request the source documents that it is now requesting.

We are then left to wonder why the informant did not raise any objection during court conferences held to review the draft audit reports, as this was the very essence of the court conferences to review the draft audit reports, that is for any party to raise an objection if they had any, but to our dismay, the informant did not raise any objection but waited till the final report was out to file an objection to the same report that they had possession of but raised no objection.

This action on the part of the informant is strange and portrays the posture that the informant is deliberately using dilatory tactics, filing whatever petition that it has at its disposal with a clear intent of delaying and baffling this case, something this Court has always frowned upon.

Another important fact of this case is that, there is no showing in the records where the credibility or the transparency of the auditor (Crowe Liberia LLC) was challenged by any of the parties; therefore, it is clear that the informant has no doubt or challenge over the auditor's neutrality and competence, this clearly demonstrates trust in the auditor by both parties.

Notwithstanding the above, this Court also believes that the term "comprehensive" necessarily implies transparency and procedural fairness. This Court further observes that the audit report was not a mere ministerial submission but formed the basis of a binding financial liability incurred by the informant.

Therefore, in spite of the above, since the audit report relied upon third-party confirmations and financial records that the informant has argued were made not available to it, even though it failed to timely object, we believe that for the sake of judicial fairness, transparency and credibility, the case should be remanded for the sole purpose of the informant accessing the source data of the audit findings and making whatever objections if any, that it has for the trial court to make a determination therefrom, as the audit findings cannot be deemed conclusive where the underlying data remains inaccessible to the party against whom liability is imposed.

It is the law in this jurisdiction that where a party is prejudiced by the denial of access to evidence relied upon in a judicial determination, such denial constitutes a violation of due process and warrants remedial intervention. *Massaquoi-Fahnbulleh v. Urey and Massaquoi*, 25 LLR 432 (1977); *Jawhary v. Jones*, 38 LLR 584 (1998).

WHEREFORE AND IN VIEW OF THE FOREGOING, the bill of information is hereby granted and the trial court is instructed to direct the auditor, Crowe Liberia LLC to produce all source documents referenced in its Final Audit Report, including confirmations from Credit Suisse Bank, invoices, shipment records, and any other documentation relied upon in determining the investment and revenue figures to the informant. The auditor should exclude any cost not directly or indirectly related to the construction of the terminal. Considering the length of time this matter has remain lingering, the court below is ordered to instruct the auditor to make available whatever source documents that were used by it to reach its conclusion to the informant to enable the informant to file any objections it may deem appropriate for the trial court to make a determination therefrom within a period of ninety-days (90) days as of the reading of this Court's mandate.

The Clerk of this Court is ordered to send a Mandate to the lower court commanding the judge presiding therein to resume jurisdiction and give effect to the judgment emanating from this Opinion. AND IT IS HEREBY SO ORDERD.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLORS CHARLYNE M. BRUMSKINE AND JAMES BAIKPEH SEEKPEE OF THE CMB LAW GROUP APPEARED FOR THE INFORMANT. COUNSELLORS ABRAHIM B. SILLAH AND T. NEGBALEE WARNER OF THE HERITAGE PARTNERS & ASSOCIATES LLC. APPEARED FOR THE RESPONDENTS.

Information granted.